



File No.: EXP202402185

SANCTIONING PROCEDURE RESOLUTION

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant), on May 18, 2022, filed a complaint with the Irish data protection authority against MY PERFECT WEDDING.

The reasons for the complaint are as follows: On May 10, 2022, the complainant requested the right of access to their personal data, which had not been duly addressed by MY PERFECT WEDDING.

Along with the complaint, the following is provided:

- Screenshot of an email sent from ***EMAIL.1 to admonwedding@hotmail.com, controller@myperfectwedding.eu, and dir@makingsolutionsgroup.com, on May 10, 2022, with the following content: "Hi B.B.B. and C.C.C., As per the GDPR General Data Protection Regulation law, I hereby request all data that you hold on me. Regards, A.A.A.". (Unofficial translation: "Hola, B.B.B. y C.C.C., De acuerdo con el RGPD Reglamento General de Protección de Datos, por la presente solicito todos los datos que tienen sobre mí. Saludos, A.A.A.").

- Screenshot of an email sent from ***EMAIL.1 to admonwedding@hotmail.com, planner@myperfectwedding.eu, controller@myperfectwedding.eu, and dir@makingsolutions@group.com, on May 12, 2022, at 16:56, with the following content: "I have been ringing all day, I can see you are online. I am still waiting on a reply! I would like to also remind you that I have requested all data you hold on me as per GDPR Law, A.A.A.". (Unofficial translation: "Llevo llamando todo el día, puedo ver que están conectados. Todavía estoy esperando una respuesta! Les recuerdo que he solicitado todos los datos que tienen de mi en virtud del RGPD, A.A.A."). Below this email, it can be seen that on May 12 at 12:18, ***EMAIL.1 wrote: "Still waiting on a reply, a business who has my money and are still trading should be able to reply to my emails and calls!". (Unofficial translation: "Todavía espero una respuesta, una tienda que tiene mi dinero y sigue comerciando debería poder responder a mis correos electrónicos y llamadas!").

On June 15, 2022, at 10:49, an email was sent from the Irish data protection authority to info@myperfectwedding.eu, planner@myperfectwedding.eu, and dir@myperfectwedding.eu, requesting MY PERFECT WEDDING information on whether it processes cross-border personal data and what the main establishment of the company is.

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On June 15, 2022, at 10:49 AM, the Irish Data Protection Authority received an email from planner@myperfectwedding.eu, acknowledging receipt of the previous email, but without further response.

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), which aims to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on November 1, 2022, and was registered with the Spanish Data Protection Agency (AEPD) the following day. The transfer of this complaint to the AEPD was carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that MY PERFECT WEDDING has its sole establishment in Spain.

According to the information incorporated into the IMI System, in accordance with the provisions of

Article 60 of the GDPR, the Irish data protection authority acts as an interested authority, in accordance with the provisions of Article 4(22)(c) of the GDPR, as it is the supervisory authority to which the complaint has been submitted, with no other supervisory authorities having declared an interest in the present procedure.

THIRD: On January 19, 2023, in accordance with the then-applicable Article 64 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint submitted by the complainant was admitted for processing.

FOURTH: According to the report obtained from the AXESOR tool on November 6, 2023, the entity MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING) is a (...) established in 2010, with a turnover of ***AMOUNT.1 in the year 2021.

FIFTH: On December 22, 2023, the Director of the AEPD adopted a draft agreement to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on December 27, 2023, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections.

Within the deadline for this purpose, the Irish supervisory authority submitted its observations on the aforementioned draft agreement to initiate sanctioning proceedings, which is why on January 24, 2024, the Spanish Data Protection Agency withdrew the aforementioned decision from the IMI System.

The processing period of the proceedings was automatically suspended during this period, in accordance with the provisions of Article 64 of the LOPDGDD.

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SIXTH: On February 9, 2024, the Director of the AEPD adopted a new draft agreement to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, the aforementioned draft was transmitted that same day through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. The processing period for the proceedings was automatically suspended during these four weeks, in accordance with the provisions of Article 64 of the LOPDGDD.

Within the specified period, the interested supervisory authorities did not submit any relevant and justified objections, so it is considered that all authorities agree with the revised draft and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

SEVENTH: On March 12, 2024, the Director of the Spanish Data Protection Agency agreed to initiate sanctioning proceedings against MY PERFECT WEDDING, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 15 of the GDPR, classified under Article 83.5 of the GDPR.

The aforementioned initiation agreement was notified in accordance with the established rules of LPACAP, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from MY PERFECT WEDDING.

EIGHTH: On October 10, 2024, the instructing body of the procedure issued a resolution proposal in which it was proposed to sanction MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING), with NIF B76509769, for an infringement of Article 15 of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €1,000.00 and that the Director of the Spanish Data Protection Agency be ordered, pursuant to Article 58.2.d) of the GDPR, to provide proof of having granted due access to the complainant's personal data within one month.

The aforementioned resolution proposal was notified in accordance with the established rules of LPACAP, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from MY PERFECT WEDDING.

From the actions carried out in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On May 10, 2022, an email was sent from ***EMAIL.1 to admonwedding@hotmail.com, controller@myperfectwedding.eu, and dir@makingsolutionsgroup.com, with the following content: "Hi B.B.B. and C.C.C., As per the GDPR General Data Protection Regulation law, I hereby request all data that you hold on me. Regards, A.A.A." (Unofficial translation: "Hola, B.B.B. y C.C.C., De acuerdo con el RGPD Reglamento General de Protección de Datos, por la presente solicito todos los datos que tienen sobre mí. Saludos, A.A.A.").

SECOND: On May 12, 2022, at 16:56, an email was sent from ***EMAIL.1 to admonwedding@hotmail.com, planner@myperfectwedding.eu, controller@myperfectwedding.eu, and dir@makingsolutions@group.com, with the following content: "I have been ringing all day, I can see you are online. I am still waiting on a reply! I would like to also remind you that I have requested all data you hold on me as per GDPR Law, A.A.A." (Unofficial translation: "Llevo llamando todo el día, puedo ver que están conectados. Todavía estoy esperando una respuesta! Les recuerdo que he solicitado todos los datos que tienen de mi en virtud del RGPD, A.A.A."). Below this email, it can be seen that on May 12 at 12:18, ***EMAIL.1 wrote: "Still waiting on a reply, a business who has my money and are still trading should be able to reply to my emails and calls!" (Unofficial translation: "Todavía espero una respuesta, una tienda que tiene mi dinero y sigue comerciando debería poder responder a mis correos electrónicos y llamadas!").

THIRD: According to the report obtained from the AXESOR tool on November 6, 2023, the entity MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING) is a (...) established in 2010, with a business volume of ***CANTIDAD.1 in 2021.

LEGAL GROUNDS

I

Competence

According to the powers granted by Article 58.2 and 60 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, it is recorded that there has been processing of personal data, since MY PERFECT WEDDING collects and retains, among others, the following...

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personal data of natural persons: name and surname and email address, among other processing activities.

MY PERFECT WEDDING carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Furthermore, this is a cross-border processing activity, given that MY PERFECT WEDDING is established in Spain, although it provides services to citizens of other countries in the European Union.

III

Right of access of the data subject

Article 15 of the GDPR, which regulates the right of access of the data subject, establishes the following:

"1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee for any further copies requested by the data subject based on administrative costs. When the data subject makes the request by electronic means, and unless otherwise requested by the data subject, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others."

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For its part, Article 12 "Transparency of information, communication and modalities for the exercise of the rights of the data subject" of the GDPR establishes that:

"(...) 3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and in any case within one month of receiving the request. This period may be extended by a further two months where necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject makes the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests otherwise.

4. If the data controller does not act on the request of the data subject, it shall inform them without undue delay and at the latest within one month of receiving the request, of the reasons for not taking action and of the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy. (...)"

In the present case, the complainant requested access to their personal data from MY PERFECT WEDDING via email on May 10, 2022, insisting on May 12, 2022, that they had not received a response.

On June 15, 2022, the Irish data protection authority sent an email to MY PERFECT WEDDING which went unanswered.

By this date, the legal deadline established for providing any response to the complainant's request for access to their personal data had been exceeded.

However, for the purposes of the statute of limitations for infringements, Article 74 of the LOPDGDD classifies the following conduct as minor:

“Minor infringements of a purely formal nature of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 shall be subject to a one-year statute of limitations.”

Therefore, since more than a year has passed since MY PERFECT WEDDING should have provided any response to the complainant, the possible infringement of Article 12 of the GDPR would be time-barred.

However, it is currently not evidenced that such a request for access to the personal data of the complainant has been addressed, so, in accordance with the evidence available at this moment in the resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to MY PERFECT WEDDING, for violation of Article 15 of the GDPR.

IV

Qualification and classification of the infringement of Article 15 of the GDPR

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The aforementioned infringement of Article 15 of the GDPR constitutes one of the violations classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

“5. Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22;
- c) the transfers of personal data to a recipient in a third country or an international organization under Articles 44 to 49;
- d) any obligation under the law of the Member States adopted pursuant to Chapter IX;
- e) the failure to comply with a decision or a temporary or definitive limitation on processing or the suspension of data flows by the supervisory authority under Article 58, paragraph 2, or the failure to provide access in violation of Article 58, paragraph 1.”

For the purposes of the statute of limitations for violations, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations are considered very serious and shall be subject to a three-year limitation period, which involve a substantial breach of the articles mentioned therein and, in particular, the following:

(...)

- k) The obstruction or hindrance or the repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)”

V

Sanction for the infringement of Article 15 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 15 of the GDPR, allows for the imposition of an administrative fine of one thousand euros.

VI

Imposition of measures

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In accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, under which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”, MY PERFECT WEDDING is required to notify this Agency within one month of the adoption of the following measures: that it has provided due access to its personal data to the complainant.

The imposition of these measures is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the resolution that concludes this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING), with NIF B76509769, for an infringement of Article 15 of the GDPR, classified in Article 83.5 of the GDPR, a fine of 1000.00 euros (ONE THOUSAND euros).

SECOND: TO ORDER MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING), with NIF B76509769, that pursuant to Article 58.2.d) of the GDPR, within one month from the date this resolution becomes final and enforceable, to prove that it has provided due access to its personal data to the complainant.

THIRD: TO NOTIFY this resolution to MAKING SOLUTIONS, S.L. (MY PERFECT WEDDING).

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that it must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Data Protection Agency at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

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Upon receiving the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for making voluntary payment will be until the 20th of the following month or the next business day thereafter. If it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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